

FILED BY: JOHNSON, KENNETH C

TENTATIVE RULING:

Any party contesting this tentative ruling must email Dept14@contracosta.courts.ca.gov and opposing parties by 4:00 p.m. on the court day prior to the hearing (7/13/26). If oral argument is requested, the requesting party shall specify the issues to be argued. If properly contested, the hearing will take place on 7/14/26 at 2:00 p.m.

Defendant filed a Motion to Compel further discovery responses on 4/14/26 and properly provided notice to Plaintiff.

Plaintiff filed a Response on 6/30/26.

Defendant filed a Reply, on 7/6/26.

Background

Exhibit A of Defendant's Motion reflects that he made a demand for the production of documents on 1/5/26. Exhibit B shows that Plaintiff provided a verified response to this request. The verification is dated 2/13/26. Exhibit One of Plaintiff's Response reflects that Plaintiff served this verified response on Defendant by mail on 2/20/26.

Defendant's proof of service, filed 4/14/26, reflects that Defendant mailed notice of his Motion to the Plaintiff on 4/14/26.

Analysis

Section 2031.310(c) provides that a party waives the right to compel any further responses to a discovery demand if they fail to provide notice of a motion to compel "within 45 days of service of the verified responses."

In the instant matter, as Plaintiff points out in their Response, even allowing for the additional 5 days of notice for mail service, 45 days from 2/25/26 would have been 4/11/26, which is before Defendant's service of the Motion (both the actual date of mailing the Motion and the date that factors in the additional 5 days of notice for mail service fall after 4/11/26).

Defendant has waived his right to compel further responses.

Disposition

Defendant's Motion is denied.

Plaintiff to file Order and provide copy of filed Order to Defendant.

14. 9:00 AM CASE NUMBER: L25-12028

CASE NAME: WELLS FARGO BANK, N.A. VS. ANITRA ALCANTARA

***HEARING ON MOTION FOR DISCOVERY NOTICE OF MOTION AND MOTION FOR AN ORDER DEEMING THE TRUTH OF THE MATTERS SPECIFIED IN PLAINTIFF'S REQUEST FOR ADMISSIONS AS ADMITTED (MOTIONS)**

FILED BY: WELLS FARGO BANK, N.A.

TENTATIVE RULING:

Any party contesting this tentative ruling must email Dept14@contracosta.courts.ca.gov and opposing parties by 4:00 p.m. on the court day prior to the hearing (7/13/26). If oral argument is requested, the requesting party shall specify the issues to be argued. If properly contested, the hearing will take place on 7/14/26 at 2:00 p.m.

Background

Plaintiff filed a Motion for Order that Matters in Request for Admission of Truth of Facts be Deemed Admitted (Motion), along with a Declaration, on 4/6/26.

Plaintiff attached the particular facts at issue, numbered One through Nine and entitled, "Set One," to their Declaration, as well as proof that they served Defendant with the discovery request, and declared that Defendant never responded to the request.

Plaintiff attached a proof of service of this Motion, indicating mail service to Defendant at the address listed on Defendant's Answer, which is the same address where Defendant was personally served with process.

No response has been filed by the Defendant.

Analysis

Where a party to whom requests for admission are directed fails to serve a timely response, the propounding party may seek a court order that the genuineness of any documents and/or the truth of any matters specified in the requests be deemed admitted pursuant to Code of Civil Procedure section 2033.280. See Code Civ. Proc. § 2033.280(b).

The responding party, or the Defendant in this matter, may avoid such an outcome, under Section 2033.280(a), if they subsequently serve, before the hearing, a *substantially compliant* response AND demonstrate that the reason for the untimely response was due to mistake, inadvertence, or excusable neglect.

The propounding party may also seek the imposition of monetary sanctions. *Id.* There is no meet and confer requirement for a motion to deem matters admitted under Section 2033.280. See *St. Mary v. Superior Court* (2014) 223 Cal.App.4th 762, 777. A monetary sanction is mandatory. See Code of Civ. Proc. Section 2033.280(c).

Disposition

The court grants Plaintiff's Motion.

The Facts at issue in Exhibit One of Plaintiff's moving papers shall be deemed admitted.

Plaintiff to draw and file Order and serve Defendant with a copy of the filed Order.

15. 9:00 AM CASE NUMBER: L25-13119

CASE NAME: WELLS FARGO BANK, N.A. VS. ELIZABETH APARICIO, AN INDIVIDUAL

***HEARING ON MOTION FOR DISCOVERY FOR AN ORDER DEEMING THE TRUTH OF THE MATTERS SPECIFIED IN PLAINTIFF'S REQUEST FOR ADMISSION AS ADMITTED**

FILED BY: WELLS FARGO BANK, N.A.

TENTATIVE RULING:

Any party contesting this tentative ruling must email Dept14@contracosta.courts.ca.gov and opposing parties by 4:00 p.m. on the court day prior to the hearing (7/13/26). If oral argument is requested, the requesting party shall specify the issues to be argued. If properly contested, the hearing will take place on 7/14/26 at 2:00 p.m.

Plaintiff filed a Motion for Order that Matters in Request for Admission of Truth of Facts be Deemed Admitted (Motion), along with a Declaration, on 4/3/26.

Plaintiff attached the particular facts at issue, numbered One through Nine and entitled, "Set One," to their Declaration, as well as proof that they served Defendant with the discovery request, and declared that Defendant never responded to the request.

Plaintiff attached a proof of service of this Motion, indicating mail service to Defendant at the address listed on Defendant's Answer, which is the same address where Defendant was personally served with process.

No response has been filed by the Defendant.

Analysis

Where a party to whom requests for admission are directed fails to serve a timely response, the propounding party may seek a court order that the genuineness of any documents and/or the truth of any matters specified in the requests be deemed admitted pursuant to Code of Civil Procedure section 2033.280. See Code Civ. Proc. § 2033.280(b).

The responding party, or the Defendant in this matter, may avoid such an outcome, under Section 2033.280(a), if they subsequently serve, before the hearing, a *substantially compliant* response AND demonstrate that the reason for the untimely response was due to mistake, inadvertence, or excusable neglect.

The propounding party may also seek the imposition of monetary sanctions. *Id.* There is no meet and confer requirement for a motion to deem matters admitted under Section 2033.280. See *St. Mary v. Superior Court* (2014) 223 Cal.App.4th 762, 777. A monetary sanction is mandatory. See Code of Civ. Proc. Section 2033.280(c).